CAMDEN COUNTY, NJ
CAMDEN COUNTY CLERK'S OFFICE
DEED-OR BOOK 10507/651
RECORDED 10/24/2016 08:48:34
FILE NUMBER 2016083551
RCPT #: 1814612; RECD BY: AL92
RECORDING FEES $103.00
MARGINAL NOTATION $0.00
TOTAL TAX $0.00

Prepared by:

Kevin D. Sheehan, Esquire

DEED OF CONSOLIDATION

This Deed is made on October 11, 2016.

BETWEEN **CHERRYDALE DEVELOPMENT PARTNERS, LLC**, 50 East Mt. Pleasant Avenue, Livingston, New Jersey 07039 referred to as the Grantors,

AND **CHERRYDALE DEVELOPMENT PARTNERS, LLC**, 50 East Mt. Pleasant Avenue, Livingston, New Jersey 07039 referred to as the Grantees.

The words "Grantors" and "Grantees" shall mean all Grantors and all Grantees listed above.

Transfer of ownership. The Grantor grants and conveys (transfers ownership of) all of their right, title and interest in the property (called the "Property") described below to the Grantee. This transfer is made for the sum of One ($1.00) Dollar.

Tax Map Reference. (N.J.S.A. 46:15-1.1) Township of Cherry Hill, County of Camden, Block No. 407.01, Lots 6 and 9, to be consolidated by this Deed and known as Block 407.01, Lot 9.

Property. The Property consists of the land and all the buildings and structures on the land in the Township of Cherry Hill, County of Camden, and State of New Jersey.

The legal description is attached hereto as Schedule "A" and made a part hereof.

BEING the same lands and premises that became vested in Cherrydale Development Partners, LLC by virtue of a Deed dated October 7, 2015 from Baird & Baird, LLC, said deed recorded with the Clerk of Camden County on November 10, 2015 in Book 10291, Page 422 ;

The purpose of this Deed is to consolidate Block 407.01, Lots 6 and 9 into one lot, to be known as Block 407.01, Lot 9 to facilitate the Site Plan approval granted to the Grantor by the Township of Cherry Hill Zoning Board as memorialized in a Resolution of Final Site Plan Approval POA #12-Z-25 adopted on April 7, 2016. This Deed shall be under and subject to all covenants, restrictions, conditions, easements, reservations and other matters of record.

This is not an official document

Promises by Grantor. The Grantors promise that the Grantors have done no act to encumber the Property. This promise is called a "covenant as to grantor's acts" (N.J.S.A. 46:4-6). This promise means that the Grantors have not allowed anyone else to obtain any legal rights which affect the Property (such as by making a mortgage or allowing a judgment to be entered against the Grantor(s).

Signatures. The Grantors sign this Deed as of the date at the top of the first page.

Witnessed by:

CHERRYDALE DEVELOPMENT PARTNERS, LLC

Cynthia M. Imperial

_____(Seal)
BY: Steven W. Katz, Manager

This is not an official document

STATE OF NEW JERSEY

ss.:

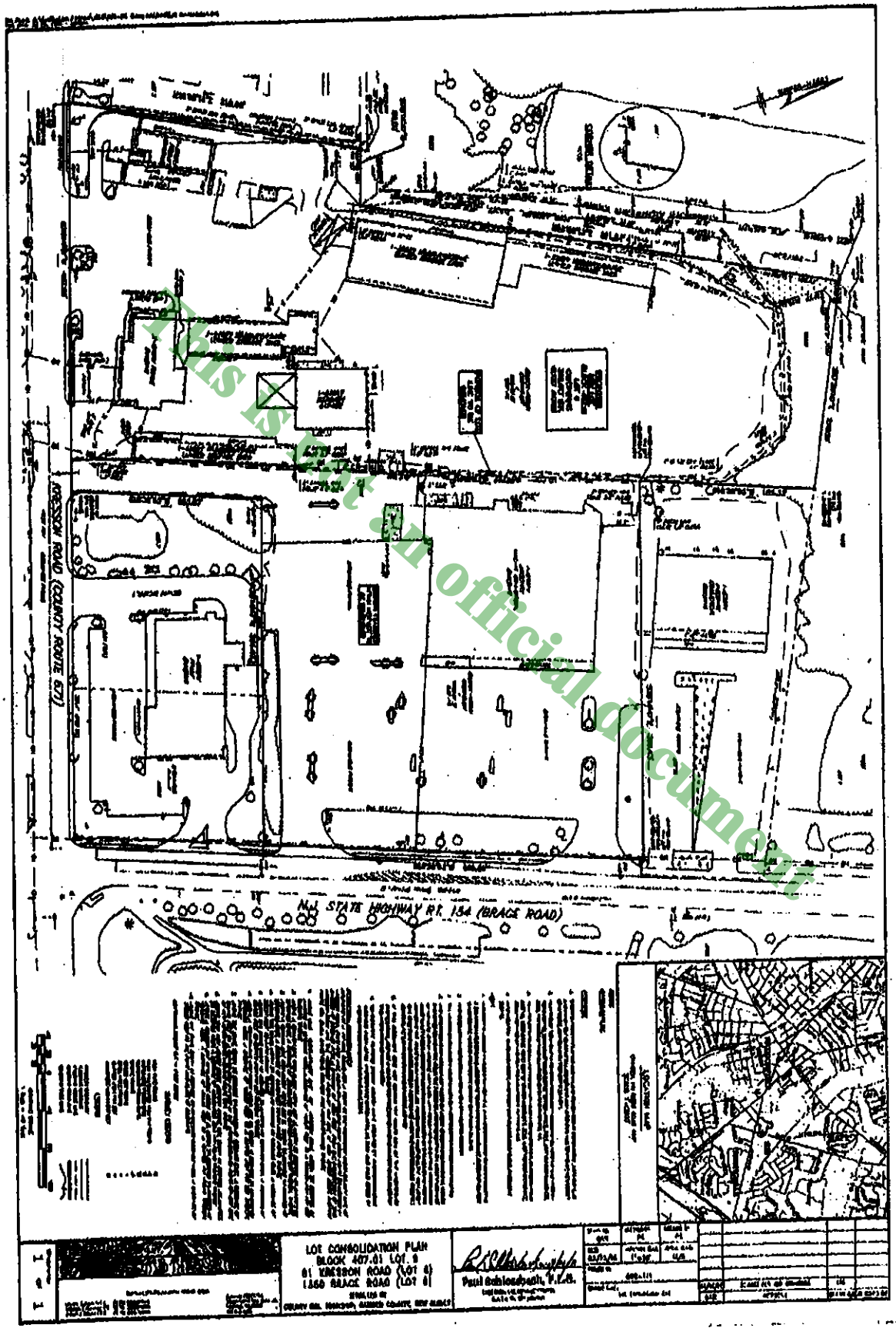
COUNTY OF ESSEX

I CERTIFY that on October 6 2016, Steven W. Katz, personally came before me and stated to my satisfaction that this person:

(a) is the Manager of the entity named in this Deed;
(b) signed, sealed and delivered this Deed as the act of the entity;
(c) is duly authorized to execute this deed on behalf of the entity; and
(d) made this Deed for $1.00 as the full and actual consideration paid or to be paid for the transfer of title. (Such consideration is defined in N.J.S.A. 46:15-5.)

_____

CYNTHIA M IMPERIAL
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires March 25, 2019



This is not an official document

MidAtlantic
Engineering Partners

July 14, 2016 Job No. BUC-141

DESCRIPTION OF PROPERTY
BLOCK 407.01 LOT 9
SITUATED IN
CHERRY HILL TOWNSHIP, CAMDEN COUNTY, NEW JERSEY

Being known and designated as Lot 9, Block 407.01, as shown on the Current Tax Assessment Map of the Township of Cherry Hill, Camden County, New Jersey.

BEGINNING at a PK nail found for a point in the northerly right-of-way line of Kresson Road, (49.5 feet wide right-of-way) said PK nail being North 75 degrees 14 minutes 47 seconds West, a distance of 364.4 feet +/- from the intersection of said Kresson Road and the westerly right-of way line of New Jersey State Highway Route 154, (a.k.a. Brace Road. 100 feet wide right-of-way); thence

1. Along said right-of-way line of Kresson Road, North 75 degrees 14 minutes 47 seconds West, a distance of 407.96 feet to a capped iron pin set therein; thence
2. Along a common line with Block 407.01 Lot 3, North 25 degrees 09 minutes 13 seconds East, a distance of 315.00 feet to capped iron pin set therein; thence
3. Along a common line with Block 407.01 Lot 1, South 75 degrees 14 minutes 47 seconds East, a distance of 60.00 feet to an angle point; thence
4. Along the same, North 25 degrees 09 minutes 13 seconds East, a distance of 511.54 feet to a pin found; thence
5. Along the same, South 67 degrees 39 minutes 47 seconds East, a distance of 218.56 feet to capped iron pin set therein; thence
6. Along a common line with Block 407.01 Lot 10, South 18 Degrees 36 Minutes 53 Seconds West, a Distance of 182.33 feet to a capped iron pin set therein; thence
7. Along the same, South 75 degrees 14 minutes 47 seconds East, a distance of 399.43 feet to a capped iron pin set in the aforementioned right-of-way line of New Jersey State Highway Route 154; thence
8. Along said New Jersey State Highway Route 154, South 18 degrees 36 minutes 53 seconds West, a distance of 400.00 feet to a pin found therein; thence
9. Along a common line with Block 407.01 Lot 8, North 75 degrees 14 minutes 47 seconds West, a distance of 364.40 feet to a capped pin found therein; thence
10. Along the same, South 18 degrees 36 minutes 53 seconds West a distance of 203.57 feet to the point and place of **BEGINNING.**

Containing 398,017 S.F. = 9.137 Acres

This description is in accordance with a map titled "Lot Consolidation Plan; Block 407.01 Lot 9" prepared by MidAtlantic Engineering Partners, LLC dated March 23, 2016, last revised 07/14/16.

Prepared By:
MidAtlantic Engineering Partners



Paul Schlossbach
Professional Land Surveyor
New Jersey License No. GS03402000

This is not an official document

Gateway 195 Centre • 5 Commerce Way - Suite 200 • Hamilton, NJ 08691
Phone: 609.910.4480 • Web: www.midatlanticeng.com

GIT/REP-3
(9-2015)

State of New Jersey
SELLER'S RESIDENCY CERTIFICATION/EXEMPTION

(Please Print or Type)

SELLER'S INFORMATION

Name(s)

Cherrydale Development Partners, LLC

Current Street Address

50 East Mt. Pleasant Avenue

City, Town, Post Office Box	State	Zip Code
Livingston	NJ	07039

PROPERTY INFORMATION

Block(s)	Lot(s)	Qualifier
407.01	6 and 9 to be known as 9	

Street Address

81 Kresson Road and 1350 Brace Road

City, Town, Post Office Box	State	Zip Code
Cherry Hill	NJ	08002

Seller's Percentage of Ownership	Total Consideration	Owner's Share of Consideration	Closing Date
100%	$1.00	$1.00	October 11, 2016

SELLER S ASSURANCES (Check the Appropriate Box) (Boxes 2 through 14 apply to Residents and Nonresidents)

1. ☐ Seller is a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to the New Jersey Gross Income Tax Act, will file a resident gross income tax return, and will pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property sold or transferred is used exclusively as a principal residence as defined in 26 U.S. Code section 121.
3. ☐ Seller is a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor, or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☒ Seller is not an individual, estate, or trust and is not required to make an estimated gross income tax payment.
6. ☐ The total consideration for the property is $1,000 or less so the seller is not required to make an estimated income tax payment.
7. ☐ The gain from the sale is not recognized for federal income tax purposes under 26 U.S. Code section 721, 1031, or 1033 (CIRCLE THE APPLICABLE SECTION). If the indicated section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey income tax return for the year of the sale and report the recognized gain.
   ☐ Seller did not receive non-like kind property.
8. ☐ The real property is being transferred by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this State.
9. ☐ The real property being sold is subject to a short sale instituted by the mortgagee, whereby the seller agreed not to receive any proceeds from the sale and the mortgagee will receive all proceeds paying off an agreed amount of the mortgage.
10. ☐ The deed is dated prior to August 1, 2004, and was not previously recorded.
11. ☐ The real property is being transferred under a relocation company transaction where a trustee of the relocation company buys the property from the seller and then sells the house to a third party buyer for the same price.
12. ☐ The real property is being transferred between spouses or incident to a divorce decree or property settlement agreement under 26 U.S. Code section 1041.
13. ☐ The property transferred is a cemetery plot.
14. ☐ The seller is not receiving net proceeds from the sale. Net proceeds from the sale means the net amount due to the seller on the settlement sheet.

SELLER'S DECLARATION

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein may be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box ☐ I certify that a Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

10/11/16
Date

Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

Date

Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

This is not an official document

RTF-1 (Rev. 7/14/10)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY
AFFIDAVIT OF CONSIDERATION FOR USE BY SELLER

(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)

BEFORE COMPLETING THIS AFFIDAVIT, PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM.

STATE OF NEW JERSEY

COUNTY ESSEX } SS. County Municipal Code 0409

MUNICIPALITY OF PROPERTY LOCATION Cherry Hill

FOR RECORDER'S USE ONLY	
Consideration	$
RTF paid by seller	$
Date	By

*Use symbol "C" to indicate that fee is exclusively for county use.

(1) PARTY OR LEGAL REPRESENTATIVE *(See Instructions #3 and #4 on reverse side)*

Deponent, STEVEN W. KATZ (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the Manager of Grantor (Grantor, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated October 11, 2016 transferring real property identified as Block number 407.01 Lot number 6 and 9 & unknown as 9 located at 81 Kreason Road and 1350 Brace Road, Cherry Hill (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $ 1.00 *(Instructions #1 and #5 on reverse side)* ☒ no prior mortgage to which property is subject.

(3) Property transferred is Class 4A 4B 4C (circle one). If property transferred is Class 4A, calculation in Section 3A below is required.

(3A) **REQUIRED CALCULATION OF EQUALIZED VALUATION FOR ALL CLASS 4A (COMMERCIAL) PROPERTY TRANSACTIONS:**
(See Instructions #5A and #7 on reverse side)

Total Assessed Valuation ÷ Director's Ratio = Equalized Assessed Valuation

$ 2,893,400.00 ÷ 94.62 % = $ 3,057,915.87

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed value. If Director's Ratio is equal to or in excess of 100%, the assessed value will be equal to the equalized valuation.

(4) FULL EXEMPTION FROM FEE *(See instruction #8 on reverse side)*

Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through C. 66, P.L. 2004, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.

(a) for consideration less than $100.00

(5) PARTIAL EXEMPTION FROM FEE *(Instruction #9 on reverse side)*

NOTE: All boxes below apply to grantor(s) only. **ALL BOXES IN APPROPRIATE CATEGORY MUST BE CHECKED.** Failure to do so will void claim for partial exemption. Deponent claims that this deed transaction is exempt from State portions of the Basic, Supplemental, and General Purpose Fees, as applicable, imposed by C. 176, P.L. 1975, C. 113, P.L. 2004, and C. 66, P.L. 2004 for the following reason(s):

A. **SENIOR CITIZEN** Grantor(s) ☐ 62 years of age or over.* *(Instruction #9 on reverse side for A or B)*

B. **BLIND PERSON** Grantor(s) ☐ legally blind or; *
DISABLED PERSON Grantor(s) ☐ permanently and totally disabled ☐ receiving disability payments ☐ not gainfully employed*

Senior citizens, blind persons, or disabled persons must also meet all of the following criteria:
☐ Owned and occupied by grantor(s) at time of sale. ☐ Resident of State of New Jersey.
☐ One or two-family residential premises. ☐ Owners as joint tenants must all qualify.

*IN CASE OF HUSBAND AND WIFE, PARTNERS IN A CIVIL UNION COUPLE, ONLY ONE GRANTOR NEED QUALIFY IF TENANTS BY THE ENTIRETY.

C. **LOW AND MODERATE INCOME HOUSING** *(Instruction #9 on reverse side)*
☐ Affordable according to H.U.D. standards. ☐ Reserved for occupancy.
☐ Meets income requirements of region. ☐ Subject to resale controls.

(6) NEW CONSTRUCTION *(Instructions #2, #10 and #12 on reverse side)*
☐ Entirely new improvement. ☐ Not previously occupied.
☐ Not previously used for any purpose. ☐ "NEW CONSTRUCTION" printed clearly at top of first page of the deed.

(7) RELATED LEGAL ENTITIES TO LEGAL ENTITIES *(Instructions #5, #12, #14 on reverse side)*
☐ No prior mortgage assumed or to which property is subject at time of sale.
☐ No contributions to capital by either grantor or grantee legal entity.
☐ No stock or money exchanged by or between grantor or grantee legal entities.

(8) Deponent makes this Affidavit to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith in accordance with the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me
this 6 day of October, 20 16

CYNTHIA M IMPERIAL
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires March 25, 2019

Signature of Deponent

Same As Grantor
Deponent Address

xxxxxx. 695
Last three digits in Grantor's Social Security Number

Cherrydale Development Partners, LL
Grantor Name

50 East Mt. Pleasant Avenue,
Livingston, NJ 07039
Grantor Address at Time of Sale

AIM Title Group, LLC
Name/Company of Settlement Officer

FOR OFFICIAL USE ONLY			
Instrument Number		County	
Deed Number		Book	Page
Deed Dated		Date Recorded	

County recording officers shall forward one copy of each RTF-1 form when Section 3A is completed to: STATE OF NEW JERSEY
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

The Director of the Division of Taxation in the Department of the Treasury has prescribed this form as required by law, and may not be altered or amended without prior approval of the Director. For information on the Realty Transfer Fee or to print a copy of this Affidavit, visit the Division of Taxation website at: www.state.nj.us/treasury/taxation/lpt/localtax.htm

This is not an official document

DEED OF CONSOLIDATION

Dated: October 11, 2016

CHERRYDALE DEVELOPMENT PARTNERS, LLC

to

CHERRYDALE DEVELOPMENT PARTNERS, LLC

Record and Return to:

AIM TITLE GROUP, LLC
600 PARSIPPANY ROAD
SUITE 202
PARSIPPANY, NJ 07054

This is not an official document